

Instructions for Using this General-Use Template to Create a Proposed Order to Amend Judgment (Family Law Case)

A Proposed Order to Amend Judgment is **one** of a **set** of required documents that make up a written Motion to amend your family law Judgment. **All** of the following documents **must** be served on the other party (or parties) and filed with the Court:

- Notice of Motion;
- Motion
- Brief in Support of Motion;
- Declaration (or Affidavit) in Support of Motion;
- Other supporting documents;
- **Proposed Order to Amend Judgment;**
- Proposed Amended Judgment; and
- Declaration (or Affidavit) of Service by Mail.

For information on making a motion, go to ndcourts.gov/legal-self-help/making-a-motion.

This General-Use template may be used to create your proposed Order to Amend Judgment when making a Motion to Modify a Judgment in a Family Law case.

To complete this general-use template:

- 1) Refer to the Findings of Fact, Conclusions of Law and Order for Judgment you want the Court to amend.
- 2) When you come to the paragraphs you want the Court to amend, write the **exact** paragraph number so the Court can easily identify the paragraph.
- 3) If you want to delete words from the paragraph, write the words **exactly** as they appear, then ~~cross through the words~~.
- 4) If you're asking the court to add new paragraphs, copy and **underline** the **exact** wording of each **new** paragraph you want to add.

ND Legal Self Help Center Staff and Court employees can't help you fill out forms, or create documents for you. If you're unsure how to proceed, consult a lawyer.

ND Legal Self Help Forms aren't official forms. Judges and courts aren't required to accept them. There's no guarantee Center forms will be accepted. Use at your own risk.

Don't include these instruction sheets when you serve or file the completed form.

An **Order to Amend Judgment** is the order the judge or judicial referee signs and dates that lists all of the amendments or modifications granted by the judge or judicial referee to the current judgment.

If you're making a Motion to Modify a North Dakota state district court family law Judgment, you're required to file a proposed Order to Amend Judgment and a proposed Amended Judgment.

If the judge or judicial referee grants your motion **and** uses your proposed Order to Amend Judgment and a proposed Amended Judgment, the judge or judicial referee signs and dates both documents.

You have two options to create your proposed Order to Amend Judgment:

Option One: Use this fillable form as is. This form includes 4 blank pages in which you may type the words and formatting of your proposed Order to Amend Judgment, including paragraph numbers. It also includes pages to add missing provisions of your parenting plan or child tax exemption. If your proposed Order to Amend Judgment doesn't fit within the existing pages, use Option Two.

Option Two: Use a word processing program. Use a word processing program, such as Microsoft Word, WordPerfect, Google Docs, or OpenOffice, to type the words and formatting of your proposed Order to Amend Judgment, including paragraph numbers.

Copy and paste the **entire** first page of this form, **except** the *italicized* paragraphs in (parentheses), into the first page of your document. Then, using the words and formatting from the rest of the form, type the words and formatting of your proposed Order to Amend Judgment, including paragraph numbers. Include the Judge's date and signature block at the end.

Important: Make sure the formatting of the words you copied and pasted are the **same** as the formatting in the Order to Amend Judgment general-use template.

All of the Forms Must be Filled out Completely!! Don't leave any of the paragraphs within the forms unanswered.

If a section of the form doesn't apply to you, type or write "N/A" or "Not Applicable."

If a form isn't completely filled out, it could result in the clerk not accepting your forms for filing, or the court may send the form back to you to complete.

Follow and Carefully Read All Instructions! There are boxes (☐) before each step. Check each box as you finish the step. Don't go on to the next step **until** the previous step is completed.

Caption:

- ☐ Fill in the name of the County in North Dakota where the family law action, or case, is filed.
- ☐ Fill in the name of the Judicial District in North Dakota where the family law case is filed. (The County is within the Judicial District.) County and Judicial District information and maps are available at ndcourts.gov/court-locations.
- ☐ Fill in the full, legal name of the Plaintiff in the original family law case on the Plaintiff line.
- ☐ Fill in the full, legal name of the Defendant in the original family law case on the Defendant line.
- ☐ If the State of North Dakota or Child Support is listed as a party in interest on your family law case, add them to the caption as "A party in interest".
- ☐ Fill in the case number. The case number is on the document you want to amend.
- ☐ Check if you're amending the Judgment **or** write in the number of the Amended Judgment (*i.e., First, Second*) you want to amend.

Opening Paragraphs:

- ☐ Check if you're the Plaintiff or Defendant.
- ☐ Fill in the appropriate North Dakota Century Code Section.
(See <https://www.ndlegis.gov/general-information/north-dakota-century-code> for the appropriate section number.
If you don't know the appropriate section, you need to research the law to decide what section to list.
Information and resources for legal research are available through the North Dakota Legal Self Help Center. Go to ndcourts.gov/legal-self-help. Scroll to the "Legal Research" section.)
- ☐ Check whether a hearing will be held.
 - ☐ If a hearing date and time have been set and you know that information, fill it in. Otherwise, leave that information blank.
- ☐ Check if you're amending the Judgment **or** write in the number of the Amended Judgment (*i.e., First, Second*) you want to amend.

Body of Order:

To complete the rest of this proposed Order to Amend Judgment, you need to refer to either the final Judgment in your case if it hasn't been amended, or the most recently Amended Judgment in your case.

Find the **exact** paragraphs of the Judgment, or most recently Amended Judgment, that you want to modify or amend. On the following pages, you tell the court the **exact** paragraph #'s and the **exact** words of the modifications to the paragraphs you wish to modify.

☐ **Paragraphs 1-4 of general-use form** (*You can either delete or add more paragraphs as needed. For example, if you only have one paragraph to amend, delete 2-4. If you have more paragraphs to amend, you can renumber and add more paragraphs*):

☐ In the blank, list the number of the paragraph you want to amend.

☐ Choose one blank (Judgment or Amended Judgment). If you want to amend an Amended Judgment, fill in the number, i.e., First Second).

☐ **Parenting Plan Section. Review the parenting plan in the Judgment you're asking the Court to modify.** In any Motion to modify parenting time in a Judgment, a parenting plan **must** be included as part of an Amended Judgment.

Important! Review the parenting plan in the Judgment you're asking the Court to modify. In any Motion to Modify parenting time in a Judgment, a parenting plan must be included as part of an Amended Judgment. The parenting plan **must** include, at minimum, the following 7 provisions:

- 1) Decision making responsibility for day to day decisions **and** major decisions such as education, health care and spiritual development.
- 2) Information sharing and access, including telephone and electronic access.
- 3) Legal residence of each child for school attendance.
- 4) Residential responsibility, parenting time, and parenting schedule for holidays, days off from school, birthdays, vacation planning, weekends, weekdays, and summers.
- 5) Transportation and exchange of the child, considering the safety of the parties.
- 6) Procedure for review and adjustment of the plan.
- 7) Methods for resolving disputes.

Important! (Continued from Page 4)

The judgment **must** also identify the parent who may claim each child as a dependent for filing income taxes.

If the parenting plan in the Judgment you're asking the Court to modify **doesn't include all 7 provisions, or identify the child tax exemption**, add each missing provision to your proposed Order to Amend Judgment.

Failure to do so may result in the motion being rejected by the court.

Judge's Signature Block:

- ☐ Fill in the number of the Order for _____ Amended Judgment (i.e., First, Second).
- ☐ Fill in the number of the Order for (Let the _____ Amended Judgment) (i.e., First, Second).

****Don't** sign and date the (proposed) Order to Amend Judgment. If the court grants your Motion, **and** uses your proposed Order to Amend Judgment, the judicial officer assigned to your case signs and dates the order. The proposed Order to Amend Judgment **isn't effective** until it's signed and dated by the judicial officer.

Page Numbering:

The pages of documents prepared for a civil case must be numbered.

First: If you **didn't use** paragraph 2, 3 or 4 for your (proposed) Order to Amend Judgment, remove the unused page or pages.

If you **didn't use** the paragraphs to add provisions related to decision making, information sharing, legal residence of the child(ren) for school attendant, parenting time (visitation) schedule, transportation and exchange arrangements, procedure for review of the parenting plan, dispute resolution, and child tax deduction, remove the unused pages.

Second: Using the page numbering at the bottom of each page, number the pages of your (proposed) Order to Amend Judgment.

- Count the total number of pages.

- Fill in the total number of pages in the **second** blank space of the page number on each page.
 - For example, if you have 4 total pages, the second blank space of the page number will look like this: “Page ____ of 4.”
- Now fill in the **first** blank space of the page number on each page.
 - Fill in “1” in the first blank space of the page number on the first page.
 - Fill in “2” in the first blank space of the page number on the second page.
 - And so on for each page of your proposed Order to Amend Judgment .
 - For example, if you have 4 total pages, the page number on each consecutive page will look like this: “Page 1 of 4,” “Page 2 of 4,” “Page 3 of 4,” “Page 4 of 4.”

Service:

In general, copies of documents filed, or intended to be filed, with the court must be provided to the other parties in the civil case. This is called service. **This includes serving the proposed Order to Amend Judgment**

There are specific requirements for serving documents. [Rule 4](#) and [Rule 5](#) of the North Dakota Rules of Civil Procedure give the requirements for service in a civil case.

Proof of service is an important step in the legal process. The court **won't** act on papers filed with the court until proof of service is filed.

For information about service and proof of service in a civil case, go to the [Service](#) link on the ND Legal Self Help Center webpage.

****Disclaimer: The North Dakota Legal Self Help Center provides resources to people who represent themselves in civil matters in the North Dakota state courts. The information provided by the Center isn't intended for legal advice but only a general guide to the civil court process. The Center can't guarantee that all judges and courts will accept forms available through the Legal Self Help Center. The Center isn't responsible for any consequences that may result from the information provided. The information can't replace the advice of a lawyer licensed to practice law in North Dakota. Use at your own risk.****

State Of North Dakota

County Of _____

In District Court

_____ Judicial District

Plaintiff,
vs

Defendant.

)
)
)
)
)
)

Case No. _____

Order to Amend the

☐ **Judgment** (*choose one*)

☐ _____ **Amended Judgment**

This matter came before the Court on the ☐ Plaintiff's/☐ Defendant's (*choose one*)

Motion to Amend Judgment pursuant to North Dakota Century Code Section

_____ and Rule 3.2 of the North Dakota Rules of Court.

☐ A hearing was held on _____ (*date*).

☐ No hearing was held.

The Court being fully advised in the matter, now makes and enters the following Order to

Amend the ☐ Judgment ☐ _____ Amended Judgment accordingly (*choose one – if an amended judgment, fill in the number; i.e. First, Second*):

(To complete the rest of this proposed Order to Amend, you need to refer to either the final Judgment in your case if it hasn't been amended, or the most recently Amended Judgment in your case.)

Find the exact paragraphs of the Judgment, or most recently Amended Judgment, that you want to modify. On the following pages, you tell the court the exact paragraph #'s and the exact words of the modifications to the paragraphs you wish to modify.)

Therefore, It Is Hereby Ordered as Follows:

1. That Paragraph _____ of the Judgment Amended Judgment (*choose one – if an Amended Judgment, fill in the number; i.e. First, Second*) previously entered in this case, shall be amended to read as follows:

2. That Paragraph _____ of the Judgment Amended Judgment (*choose one – if an Amended Judgment, fill in the number; i.e. First, Second*) previously entered in this case, shall be amended to read as follows:

3. That Paragraph _____ of the Judgment Amended Judgment (*choose one – if an Amended Judgment, fill in the number; i.e. First, Second*) previously entered in this case, shall be amended to read as follows:

4. That Paragraph _____ of the Judgment Amended Judgment (*choose one – if an Amended Judgment, fill in the number; i.e. First, Second*) previously entered in this case, shall be amended to read as follows:

(Use if the parenting plan in your current Judgment is missing the legal residence of the minor children for school attendance provision. Remove this page if this provision is in your current Judgment or Amended Judgment).

____. That Paragraph _____ shall be added to the ☐ Judgment ☐ _____ Amended Judgment (*choose one – if an Amended judgment, fill in the number; i.e. First, Second*) previously entered in this case, and reads as follows:

Legal Residence: The legal residence of the minor children for school attendance shall be (*choose one*):

- ☐ The Plaintiff's place of residence.
- ☐ The Defendant's place of residence.
- ☐ Other: _____.

(This space left intentionally blank.)

(Use if the parenting plan in your current Judgment is missing the parenting time provision. Remove this page if this provision is in your current Judgment or Amended Judgment).

____. That Paragraph _____ shall be added to the ☐ Judgment ☐ _____ Amended Judgment (*choose one – if an Amended judgment, fill in the number; i.e. First, Second*) previously entered in this case, and reads as follows:

Parenting time: ☐ Plaintiff/☐ Defendant (*choose one*) shall have parenting time as agreed in the Parenting Time Schedule below.

Plaintiff and Defendant intend the following guideline to provide ongoing consistent parenting time for the children. Plaintiff and Defendant recognize that there will be times that the schedule requires adaptation for the best interest of the children. Plaintiff and Defendant agree to negotiate changes to the schedule in the best interest of the children.

Parenting time, and the parenting schedule shall be as follows:

Weekends: ☐ Alternating ☐ Other: _____

Weekdays: ☐ One night per week (_____) ☐ Other: _____

Holidays: _____

Days off from school: _____

Birthdays: ☐ Alternating the child(ren)'s birthdays: _____

☐ Other: _____

Plaintiff's Birthday: _____

Defendant's Birthday: _____

Summers: _____

Vacations: _____

Parenting time beginning date: _____

(Use if the parenting plan in your current Judgment is missing the decision making responsibility provision. Remove these 2 pages if this provision is in your current Judgment or Amended Judgment).

____. That Paragraph _____ shall be added to the ☐ Judgment ☐ _____ Amended Judgment (*choose one – if an Amended Judgment, fill in the number; i.e. First, Second*) previously entered in this case, and reads as follows:

Decision Making Responsibility:

- a. Emergency Medical Decisions:** Each parent is authorized to make emergency health care decisions while the child(ren) is/are in that parent's care.
- b. Day-to-day Decisions:** Each parent is authorized to make decisions regarding the day-to-day care and control of the child(ren) while the child(ren) reside with that parent, except as provided in c, d, e, f, and g below.

c. Daycare/Afterschool provider :

- ☐ When the parents reside in the same community, they will use the same daycare/afterschool provider.
- ☐ Each parent may decide to utilize the daycare/afterschool provider of their own choosing.
- ☐ The Plaintiff will designate the daycare/afterschool provider.
- ☐ The Defendant will designate the daycare/afterschool provider.
- ☐ The child(ren)'s daycare/afterschool provider is _____.
- ☐ Other: _____.

d. Education Decisions will be made by (*choose one*):

- ☐ The Plaintiff
- ☐ The Defendant
- ☐ The Plaintiff and Defendant jointly

e. Non-Emergency Health Care Decisions will be made by (*choose one*):

- ☐ The Plaintiff
- ☐ The Defendant
- ☐ The Plaintiff and Defendant jointly

f. Spiritual Development Decisions will be made by (*choose one*):

- ☐ The Plaintiff
- ☐ The Defendant
- ☐ The Plaintiff and Defendant jointly

g. Both parents must consent before any minor child will be permitted to _____

(This space left intentionally blank.)

(Use if the parenting plan in your current Judgment is missing the information sharing and access provision. Remove this page if this provision is in your current Judgment or Amended Judgment).

____. That Paragraph _____ shall be added to the ☐ Judgment ☐ _____ Amended Judgment (choose one – if an Amended Judgment, fill in the number; i.e. First, Second) previously entered in this case, and reads as follows:

Information sharing and access: Both parents shall have access to educational, medical, dental, religious, insurance, and other records. Both parents have the right to attend school conferences. This right does not require any school to hold a separate conference with each parent. Both parents shall allow reasonable access to the child by phone or other means. Each parent shall inform the other as soon as reasonably possible of serious accidents or illness which require health care treatment, providing the time of the accident or illness and the name of the treating health care provider. Parents shall inform each other of address and phone number changes immediately. Parties shall keep each other informed of the name and address of the school the child(ren) attend.

Telephone access to the children shall be as follows: _____

Electronic access to the children shall be as follows: _____

(This space left intentionally blank.)

(Use if the parenting plan in your current Judgment is missing the transportation and exchange arrangements provision. Remove this page if this provision is in your current Judgment or Amended Judgment).

____. That Paragraph ____ shall be added to the ☐ Judgment ☐ _____ Amended Judgment (choose one – if an Amended Judgment, fill in the number; i.e. First, Second) previously entered in this case, and reads as follows:

Transportation And Exchange Arrangements Considering The Safety Of The Child(ren)

(select any that apply):

- ☐ When Plaintiff and Defendant live in the same community, the responsibility of picking up and returning the child(ren) is shared with the (choose one) ☐ Plaintiff / ☐ Defendant picking up the child(ren) and (choose one) ☐ Plaintiff / ☐ Defendant dropping off the child(ren).
- ☐ The child(ren) shall be picked up and returned to the front entrance of the appropriate residence.
- ☐ The parent dropping off the child(ren) shall not leave the premises until the child(ren) are safely inside.
- ☐ Any change in pick up or drop off location will be determined by _____.
- ☐ The person picking up or dropping off the child(ren) during times of parenting time has an obligation to be punctual, arriving at the agreed time and place, not substantially earlier or later.
- ☐ Other: _____.
- ☐ Other: _____.

(Use if the parenting plan in your current Judgment is missing the review and adjustment to parenting plan provision. Remove this page if this provision is in your current Judgment or Amended Judgment).

____. That Paragraph _____ shall be added to the ☐ Judgment ☐ _____ Amended Judgment (*choose one – if an Amended Judgment, fill in the number; i.e. First, Second*) previously entered in this case, and reads as follows:

Review and adjustment to parenting plan: When family necessities, illnesses, or commitments reasonably require, the parenting plan will be modified fairly. The parent requesting modification shall act in good faith and give as much notice as circumstances permit.

Plaintiff and Defendant also anticipate that at some point circumstances may fundamentally change, and agree that the parenting plan will be reviewed upon the following events: (*choose any that apply.*)

☐ Plaintiff and Defendant may change this plan by agreement, but all changes must be in writing, signed, and dated by both.

☐ The oldest child reaches age _____.

☐ If either Plaintiff or Defendant intends to move more than _____ miles from their current residence.

☐ After recommendation of a professional (i.e. doctor, therapist, pastor).

☐ After arrest or criminal activity by one or both parties.

☐ Upon verified chemical abuse /relapse.

☐ Upon an agency or Court finding of child abuse or neglect by one or both parties.

☐ Upon a court finding of domestic violence by one or both parties.

☐ Prolonged lack of contact with the child.

☐ Other: _____

(Use if the parenting plan in your current Judgment is missing the dispute resolution provision. Remove this page if this provision is in your current Judgment or Amended Judgment).

____. That Paragraph _____ shall be added to the ☐ Judgment ☐ _____ Amended Judgment (choose one – if an amended judgment, fill in the number; i.e. First, Second) previously entered in this case, and reads as follows:

Dispute resolution: In the event Plaintiff and Defendant are unable to resolve their differences with regard to the parenting plan, disputes shall be submitted to: (choose one)

☐ Counseling.

☐ Mediation.

☐ Other _____.

The cost of the dispute resolution process will be allocated between Plaintiff and Defendant as follows:

☐ Plaintiff and Defendant shall each pay one-half.

☐ As determined in the dispute resolution process.

☐ Other _____.

The parent beginning the dispute resolution process shall notify the other parent by:
_____.

In the dispute resolution process with regard to the parenting plan, preference will be given to carrying out this parenting plan. Unless an emergency exists, Plaintiff and Defendant shall use the designated process to resolve disputes, except those related to financial support.

(This space left intentionally blank.)

(Use if the parenting plan in your current Judgment is missing the child tax exemption provision. Remove this page if this provision is in your current Judgment or Amended Judgment).

____. That Paragraph ____ shall be added to the ☐ Judgment ☐ Amended Judgment (choose one – if an Amended Judgment, fill in the number; i.e. First, Second) previously entered in this case, and reads as follows:

Child tax exemption: Only one parent may claim an exemption for each child on their income tax return. Each parent shall execute any IRS or similar forms to allow the other parent to take the exemption, deduction and credit in the appropriate years.

(Choose one)

☐ For each minor child, the child tax exemption shall be claimed according to the following schedule (*P = Plaintiff, D = Defendant*):

Child's Initials	Exemption claimed every year by:		Exemption claimed odd years by:		Exemption claimed even years by:	
	☐ P	☐ D	☐ P	☐ D	☐ P	☐ D
	☐ P	☐ D	☐ P	☐ D	☐ P	☐ D
	☐ P	☐ D	☐ P	☐ D	☐ P	☐ D

☐ The parent who provided health insurance coverage for the minor child for _____% or more of the tax year shall claim the child tax exemption for that child.

☐ Other: _____

(This space left intentionally blank.)

Order for _____ Amended Judgment

Let the _____ Amended Judgment Be Entered Accordingly.

Dated _____

(Judge of District Court)